
Appeal Decision

Site visit made on 3 August 2026

by **D R Kay BA Dip.Arch RIBA**(Retired)

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6007369

38 Brook Lane, Corfe Mullen, Wimbourne, Dorset BH21 3RD

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Jacquie Upton against the decision of Dorset Council.
 - The application Ref is P/HOU/2025/06963.
 - The development proposed is: Erect extension to existing annex, flue.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The description of development was changed by the Council from that included on the application form. Whilst not being consulted, the appellant has raised no objection to the change. I have therefore used the Council's revised description in the header above, as it more accurately describes the extent of development.
3. A revised National Planning Policy Framework was published on 17 August 2026 (the Framework 2026). Whilst this made certain revisions to aspects of national planning policy, having examined the Framework 2026 in respect of the matters relied on by the main parties, I find these are substantially unchanged. I have therefore determined the appeal in accordance with the revised Framework 2026.

Main Issues

4. The appeal site is located within the South-East Dorset Green Belt; the main issues therefore are:
 - whether the proposal would be inappropriate development in the Green Belt (the GB) for the purposes of the development plan and the Framework 2026 including the effect upon the openness of the Green Belt; and
 - if the proposal is found to be inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations so as to amount to the very special circumstances required to justify the development.

Reasons

Whether or not the development would be inappropriate

5. The appeal property consists of a large, almost square two-storey dwelling, together with a single storey rectangular shaped former garage building, which has

previously been converted to a two-bedroom annexe. The appeal property sits within a large rectangular plot, the main dwelling occupying a central location, whilst the annexe building sits to the side and in front of the principal elevation of the main dwelling, attached to it via a high masonry wall, through which a gate provides access from the property's front forecourt to the rear garden.

6. The proposal seeks to erect a small extension within the corner between the main dwelling and the annexe to provide a dedicated living room. The proposal does not seek to create an internal link between the two elements of the property, which would remain as two elements within a single residential planning unit.
7. Development within the GB is controlled by saved Policy GB3 of the East Dorset Local Plan 2002 (the Saved Local Plan), and Policy KS3 of the Christchurch and East Dorset Local Plan Part 1 – Core Strategy 2014 (the Core Strategy). The latter policy relates to the strategic control of GB within the development plan area, whilst the former provides specific policy relating to extensions and replacement dwellings in the GB.
8. Policy GB6 of the Framework 2026 states that development in the GB is inappropriate unless it falls within one of the categories in policy GB7. It goes on to state that inappropriate development is, by definition, harmful to the GB and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the GB by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the GB which would be caused, including harm to its openness.
9. The primary issue is to determine if the proposal would represent inappropriate development in the Green Belt. Policy GB7 of the Framework 2026 sets out exceptions to inappropriate development. I find the site would not comply with exceptions GB7(1)(a), GB7(1)(c), GB7(1)(d), GB7(1)(f), GB7(1)(g) or GB7(1)(h). With regards to GB7(1)(e) - the redevelopment of previously developed land (PDL), the site is within the garden curtilage of a residential dwelling. As such, it would not meet the definition of PDL in Annex B of the Framework 2026. I find it would, therefore, not meet the GB7(1)(g) exception.
10. With regards to the exception at paragraph GB7(1)(b), this relates to the extension or alteration of a building, provided that it does not result in disproportionate additions over and above the size of the original building. For the purposes of the policy GB7(1)(b) exception, the 'original building' is defined in Footnote 40 as 'the building that existed on 1 July 1948 or, if constructed after 1 July 1948, as it was built originally'.
11. The evidence identifies that the original main dwelling was a single-storey dwelling with a detached double garage. The main dwelling received permission from the Council in 1987 for the addition of a further storey, extending the property upwards to create a two-storey dwelling to its full footprint. The evidence does not identify if the original bungalow had any accommodation within the roof space, but on the basis of creating another full storey height, to its full perimeter, the original main dwelling was substantively doubled in size.
12. Subsequently, the double garage received permission in 1993 for a substantial extension to create a four-car garage, its footprint increasing by around 110%. This

enlarged garage block, in incidental use to the main dwelling, was further granted permission in 2021 for its conversion to residential accommodation ancillary to the main dwelling house.

13. Cumulatively, the floor area of the original building has therefore already been enlarged by significantly more than 100% from its original residential floorspace. The proposal would seek further development, which taken in combination with the development which has already taken place, I find would represent disproportionate additions, over and above the size of the original building. I therefore find that it would not benefit from the exception to inappropriateness provided by policy GB7(1)(b) of the Framework 2026.
14. Written Policy GB3 contained in paragraph 6.104 of the Saved Local Plan, does not specifically place a restriction on the size of extensions. However, within the preceding paragraphs 6.99 to 6.103, it acknowledges that it would clearly be contrary to the purpose of the GB to allow a succession of 'limited' extensions which cumulatively form a substantial extension to an existing dwelling. This acknowledges that Government advice and general policy towards development in the GB at the time (Planning Policy Guidance 2 Green Belts (DETR, 1995) (PPG2)), permit 'limited' but not 'disproportionate' extensions. This accords with the thrust of policy GB7(1)(b) of the Framework 2026.
15. Assessed against the wording of Policy GB3 in isolation, as a single-storey extension of limited floor area, height and bulk, the proposed extension would not dominate the existing dwelling. This would in part be due to its limited size, the overall size of the buildings that currently occupy the site and its location within an internal corner, where the main dwelling and annexe are at their closest points to each other. The proposed development would also be substantially screened from within views from the public realm.
16. However, I find the proposal would change the visual impact of the dwelling on the openness of the Green Belt through an increase in its built form, resulting in harm. The proposal would also create some loss of openness, by the development of previously undeveloped land within the Green Belt, which would also result in some spatial harm through encroachment. I would classify both these harms as being moderate. However, policy GB6(2) of the Framework 2026 requires that substantial weight is given to any harm to the Green Belt, including harm to its openness.
17. For the above reasons, I therefore conclude that the proposal would conflict with Policy GB3 of the Saved Local Plan and Policy KS3 of the Core Strategy. It would also constitute inappropriate development in the Green Belt.

Other Considerations

18. Whilst I have found harm to the openness of the Green Belt, the proposal would be of an acceptable design in relation to layout, site coverage, architectural style, bulk, height, materials, landscaping and other visual impact. It would be sympathetic to the character and appearance of the surrounding area. The proposal would also raise no conflicts with overlooking or loss of privacy impacts to the occupants of neighbouring properties. I therefore find it would accord with the criteria contained in Policy HE2 of the Core Strategy.
19. The appellant has stated that the reason for the proposal is to provide additional accommodation to allow for multi-generational living. It is understood that this

would facilitate support for someone with a protected characteristic. However, the existing annexe already provides two bedrooms, a bathroom and a large, combined kitchen, dining and lounge area. It is therefore already capable of providing independent living facilities for occupants of two separate bedrooms.

20. The proposal would add a separate larger lounge area, together with a combined utility/bathroom area. There is no evidence before me that the needs of the person, or persons, with protected characteristics have mobility issues which require additional circulation space, that would provide justification for the further increase in the lounge and dining area. Similarly, it has not been identified that the person requires permanent live-in support, that would prevent one of the two bedrooms from being used as lounge facilities.
21. I have therefore given due regard to the Public Sector Equality Duty for persons with protected characteristics under s149 of the Equality Act 2010. However, I consider that the harm to the openness of the GB from the proposal, outweighs the benefit to the appellant in this case.
22. The appellant's agent has suggested that the appellant could enact larger extensions to the existing dwelling through exercise of their rights under the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) (the GPDO). There is no evidence before me to determine if the rights under the GPDO are available to the appellant, or if they have previously been restricted by condition or other Article 4 Direction by the Council. It is therefore not clear that there would be a real prospect of the suggested development occurring under the GPDO. I have therefore given this little weight in my determination of the appeal.

Green Belt Balance and Conclusion

23. The proposal would constitute inappropriate development in the Green Belt, resulting in harm to its openness. Accordingly, the Framework 2026 requires that substantial weight is given to any harm to the Green Belt, including harm to its openness, and that inappropriate development should not be approved except in very special circumstances. Very special circumstances will not exist unless the harm to the Green Belt and any other harm, is clearly outweighed by other considerations. I conclude that the other considerations in this case, are not sufficient to comprise the very special circumstances necessary to justify the approval of this proposal. The proposal is contrary to Policy GB3 of the East Dorset Local Plan 2002, and Policy KS3 of the Christchurch and East Dorset Local Plan Part 1 – Core Strategy 2014, which seek to protect the Green Belt.
24. I have considered all other matters raised, but none outweigh the conclusions I have reached. For the reasons set out above, the appeal is dismissed.

David Kay

INSPECTOR